

Calaveras Superior Court
Civil Law & Motion Calendar
Friday, July 23, 2021; 9:00 AM
Hon. David M. Sanders, Courtroom 2

9:00 AM 16CV41853 Motion to Dismiss for Delay in Prosecution 09/01/2016 08/18/2021 Case Management Conference

X-C: Schulz, Elizabeth
Def/Res: Hyatt, Dylan P.

Atty: Sternfeld, David I.
Atty: Huber, Jonathan Paul

TENTATIVE RULING: Dylan P. Hyatt, as personal representative of the estate of Jonathan Alan Hughes (Hyatt) moves, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (1) and (2)(A), for an order dismissing Elizabeth Schulz' (Schulz) action with prejudice on the grounds that Schulz has failed to properly serve moving party with a summons and complaint within two years of commencing her action, and that Schulz has delayed prosecuting the action and failed to bring it to trial within three years after its commencement.

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).)

The Court construes Hyatt's stipulation to an extension of time to answer the Amended Cross-Complaint as a waiver of the short-comings in service asserted as the basis for the motion. (See Stipulation filed June 1, 2021.) The Court declines to exercise its discretion and dismiss the action.

The Court further notes that should the conditions for dismissal provided for in Code of Civil Procedure section 583.310 be satisfied, such dismissal will be processed in due course through the Court's Case Management calendar and is not, therefore, a proper subject for motion by a party.

Based on the foregoing, the Motion is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Elizabeth Schulz to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM 18PR8058 Motion to Dismiss for Delay in Prosecution 06/22/2018 08/18/2021 Case Management Conference

Petrn: Lombino, Jaimee
Decedent: Hughes, Jonathan

Atty: Huber Law Group APC
Atty:

TENTATIVE RULING: Dylan P. Hyatt, as personal representative of the estate of Jonathan Alan Hughes (Hyatt) moves, pursuant to Code of Civil Procedure sections 583.410 and 583.420, subdivisions (1) and (2)(A), for an order dismissing Elizabeth Schulz' (Schulz) action with prejudice on the grounds that Schulz has failed to properly serve moving party with a summons and complaint within two years of commencing her action, and that Schulz has delayed prosecuting the action and failed to bring it to trial within three years after its commencement.

"The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." (Code Civ. Proc., § 583.410, subd. (a).)

The Court construes Hyatt's stipulation to an extension of time to answer the Amended Cross-Complaint as a waiver of the short-comings in service asserted as the basis for the motion. (See Stipulation filed June 1, 2021.) The Court declines to exercise its discretion and dismiss the action.

The Court further notes that should the conditions for dismissal provided for in Code of Civil Procedure section 583.310 be satisfied, such dismissal will be processed in due

course through the Court's Case Management calendar and is not, therefore, a proper subject for motion by a party.

Based on the foregoing, the Motion is DENIED.

The clerk shall provide notice of this ruling to the parties forthwith. Elizabeth Schulz to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM 19CV44365 Motion for Leave to File First Amended Complaint 10/07/2019 09/15/2021 Case Management Conference

Ptff/Pet: Bailey-Paich, Carolyn
Def/Res: FCA US Llc; Stockton Dodge Inc.

Atty: MLG Aplc
Atty: Snell & Wilmer Llp

TENTATIVE RULING: Plaintiff Carolyn Bailey-Paich moves, pursuant to Code of Civil Procedure sections 473 (a)(1), and 576, for an order granting leave to file a First Amended Complaint and "deeming the First Amended Complaint filed and served as of the date of granting the Motion."

After reviewing the First Amended Complaint attached as Exhibit A to the Declaration of Afnan Shukry (FAC), the Court finds that the interests of justice would be furthered by granting Plaintiff the requested leave. (See CCP § 473.) No opposition to the motion was timely filed.

For the foregoing reasons, Plaintiff's motion for an order granting leave to file the FAC is GRANTED. However, the Court declines Plaintiff's request to deem the First Amended Complaint filed and served as of the date of granting the Motion. Rather, Plaintiff is given 10 days' leave from the date of notice of entry of order to file and serve the FAC in the form attached as Exhibit A to the Declaration of Afnan Shukry.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

9:00 AM 21CF13407 Plaintiff's Motion to Deem Requests for Admissions Admitted 02/08/2021 09/01/2021 Case Management Conference

Ptff/Pet: Lvnv Funding Llc
Def/Res: Seagraves, Deborah L

Atty: Law Office Of Harris And Zide
Atty: Pro Se

TENTATIVE RULING: Plaintiff has not complied with Local Rule 3.3.7 enacted January 1, 2018, by failing to include the mandatory language in the notice of motion regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon Plaintiff's failure to comply with Local Rule 3.3.7, this motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

9:00 AM 21CV45365 Demurrer Hearing 05/21/2021

Ptff/Pet: Moffett, Marty Jo
Def/Res: Calaveras County Animal Services

Atty: Frye, Charles W
Atty: Calaveras County Counsel

TENTATIVE RULING: Respondent Calaveras County demurs generally to Petitioner Marty Jo Moffett's Petition for Writ of Mandamus pursuant to Code of Civil Procedure